

Tentative Rulings

August 21, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Torres v. Reveles, et al*, Case No. CIVSB2508211
Defendants' Motion to Stay Civil Proceedings
8/21/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

Neither the U.S. Constitution nor the California Constitution requires a stay of civil proceedings pending the outcome of a criminal proceeding, and simultaneous civil and criminal proceedings are unobjectionable unless they result in substantial prejudice to the rights of the parties. (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 885.)

However, “[h]istorically, courts have devised a number of procedures designed to accommodate the specific circumstances of the case.” (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 882.) “One accommodation is to stay the civil proceeding until disposition of the related criminal prosecution.” (*Avant!, supra*, 79 Cal.App.4th at p. 882, citing *People v. Coleman* (1975) 13 Cal.3d 867, 885.) Another possibility is to allow the civil defendant to invoke the privilege against self-incrimination, even if doing so may limit the defendant’s ability to put on a defense.” (*Ibid.*) Other accommodations have included conferring an immunity on the party invoking the privilege or precluding a litigant who claims the constitutional privilege against self-incrimination in discovery from waiving the privilege and testifying at trial to matters upon which the privilege had been asserted. Each of these procedural tools is devised based on the circumstances of the particular case. “The alleviation of tension between constitutional rights has been treated as within the province of a court’s discretion in seeking to assure the sound administration of justice.” (*Avant!, supra*, at p. 882, quoting from *People v. Coleman, supra*, at p. 885.)”

In this case, Defendant Perez was arrested and charged in Case No. FSB25000519. He argues that a stay is necessary to preserve his 5th Amendment privilege, as inquiries in this matter necessarily overlap with this wrongful death action.

Importantly, Plaintiff has *not* submitted an opposition to this motion. A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Thus, the Court would grant this motion.

14. *Rodriguez v. Ramirez, et al*, Case No. CIVSB2603109
Defendant’s Motion to Strike Portions of the Complaint
7/16/26, 9:00 a.m., Dept. S-17

This matter was continued from its original date of July 16, 2026

Tentative Rulings

The Court would **DENY**.

Case Summary

This is an automobile accident, personal injury case. Plaintiff alleges that he was injured in an automobile accident that was caused by Defendant on July 20, 2025. Plaintiff asserts that Defendant

was negligent, driving at unsafe speeds, and intoxicated at the time of the accident. As such, he filed suit on January 28, 2026, alleging causes for (1) motor vehicle; (2) negligence; and (3) willful misconduct. Relevant here, Plaintiff also included an exemplary damages attachment and prays for punitive damages.

Statement of the Law

A motion to strike can be used to reach defects or objections to pleadings that are not challengeable by demurrer. A motion to strike can be used to attack the entire pleading, or any part thereof. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) The motion can be used to strike out any irrelevant, false, or improper matters inserted in any pleading or may strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) “Irrelevant matter” includes a demand for judgment requesting relief not supported by the allegations or an allegation that is neither pertinent to nor supported by an otherwise sufficient claim. (Code Civ. Proc., § 431.10(b)(2)-(3).)

Analysis

Defendant, here, seeks to strike the allegations and prayer for punitive damages. He asserts that Plaintiff does not allege factual specificity sufficiently to support punitive damages. Defendant argues that referencing his conduct as wanton or willful is insufficient to establish that Defendant was motivated to injure Plaintiff. He largely relies on *Taylor v. Superior Court* (1979) 24 Cal.3d 890, for the proposition that general intoxication does not rise to the level of “despicable conduct” – as required with an allegation of malice – where the allegations lack any aggravating factors such as extreme speed, high blood alcohol content (BAC), or fleeing the scene.

Under Civil Code section 3294, in an action for breach of an obligation not arising out of a contract, the plaintiff may recover punitive damages where it is proven that the defendant is guilty of oppression, fraud, or malice. To establish a conscious disregard for the safety of others as a predicate for punitive damages, a plaintiff must establish that the defendant was aware of the probable dangerous consequences of his actions and that he willfully and deliberately failed to avoid the consequences. (*Taylor, supra*, 24 Cal.3d at pp. 895-896.)

In *Taylor*, our Supreme Court overruled a wealth of prior case law precluding punitive damages against intoxicated drivers. The facts in *Taylor* are instructive that more than conclusory facts must be alleged in seeking punitive damages against a drunk driver: The *Taylor* court stated: “One who wilfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others.” (*Id.* at p. 897.) The court also discussed that allowing punitive damages will also serve to deter similar future conduct and also that the severity of the issue of intoxicated driving as illustrated in public reports, which showed the severe threat to public safety posed by intoxicated drivers. (*Id.* at pp. 898-899.)

Although not discussed by the parties, the later case of *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, demonstrates that more than conclusory facts must be alleged. In *Dawes*, the Court of Appeal issued a peremptory writ of mandate commanding the trial court to vacate its order striking allegations of the

complaint that the driver, while intoxicated, ran a stop sign, zigzagged in and out of traffic at speeds in excess of 65 mph in a 35 mph zone, all with reckless disregard of the probable consequences of said conduct and with reckless disregard of the safety of others. The *Dawes* court found these facts sufficient to establish the defendant's conscious disregard of the safety of others and that the probability of injury to others could reasonably be inferred. The court reasoned that such allegations, since at least 1974, were sufficient to be interpreted as malice under Civil Code section 3294. (*Id.* at pp. 87-88.)

Thus, it is not always the case that driving while intoxicated will support punitive damages. However, such may be a factor to consider in determining whether sufficient facts are alleged. *Taylor* recognized a shift in the court's view that there exists a commonly understood risk of driving while intoxicated. Here, the allegations are not simply that Defendant drove while intoxicated but that he consumed alcohol to the point of intoxication, "knowing full well from the outset that he must thereafter drive a motor vehicle." (Compl., Attch. 1, ¶4.) As stated in *Taylor*, "one who voluntarily commences, and thereafter continues, to consume alcoholic beverages to the point of intoxication, knowing from the outset that he must thereafter operate a motor vehicle demonstrates, in the words of Dean Prosser, 'such a conscious and deliberate disregard of the interests of others that his conduct may be called wilful or wanton.' [Citation.]" (*Taylor, supra*, 24 Cal.3d at p. 899.) In this light, the Court would deny the motion.

17. *Tembrina v. Williams Furnace Co., et al*, Case No. CIVSB2127440
Motion for Preliminary Approval of Class Action Settlement
8/21/26, 1:30 p.m., Dept. S-17

This matter was continued from its original hearing date on June 12, 2026

Tentative Ruling

The Court would **GRANT**.

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that "the settlement is fair, adequate and reasonable." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include "the strength of the plaintiffs' case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be tailored to each case." (*Ibid.*) The court may "engage in balancing and weighing of factors depending on the circumstances of each case." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245, overruled on other grounds in *Hernandez v. Restoration Hardware* (2018) 4 Cal.5th 260, 269.)

"Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement." (*Wershba*,

supra, 91 Cal.App.4th at p.245 [quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801].) “The court must therefore scrutinize the proposed settlement agreement to the extent necessary to “reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” (*Ibid.* [quoting *Officers for Justice v. Civil Service Com’n* (9th Cir. 1982) 688 F.2d 615, 625].)

Nevertheless, the settlement is entitled to a “presumption of fairness . . . where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Kullar, supra*, 168 Cal.App.4th at p. 128, quoting *Dunk, supra*, 48 Cal.App.4th at p. 1802.)

Provisional Class Certification at Preliminary Approval

Although a lesser standard can be used to provisionally certify a settlement class, the court still needs to review and consider each element for certification. (*Global Minerals & Metals Corp. v. Superior Court* (2003) 113 Cal.App.4th 836, 859.) But, as settlement eliminates the need for trial, “the case management issues inherent in ascertainable class determination need not be confronted.” (*Ibid.*)

A class should be certified when “the question is one of a common or general interest, of many persons, or when parties are numerous and it is impracticable to bring them all before court.” (Code Civ. Proc., § 382.) There must be both an ascertainable class and a well-defined community of interest, which includes predominate questions of law or fact, class representatives with claims typical of the class, and class representatives who can adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

Settlement Notice

“If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.” (Rules of Court, rule 3.769(f); *Wershba v. Apple Computer, Inc., supra*, 91 Cal.App.4th at p. 251.)

“The purpose of the class notice in the context of a settlement is to give class members sufficient information to decide whether they should accept the benefits offered, opt out and pursue their own remedies, or object to the settlement. As a general rule, class notice must strike a balance between thoroughness and the need to avoid unduly complicating the content of the notice and confusing class members. Here, again, the trial court has broad discretion. (*Wershba, supra*, 91 Cal.App.4th at p. 252.)

The manner of notice shall be by means reasonably calculated to apprise the class members of the settlement. (Rules of Court, rule 3.766(f).) The standard is “whether the notice has ‘a reasonable chance of reaching a substantial percentage of the class members.’” (*Wershba, supra*, 91 Cal.App.4th at p. 251.) The court must consider the interest of the class, type of relief obtained, the state of the individual class members, the costs of notifying the class members, the resources of the parties, the possible prejudice to the class members who do not receive notice, and the *res judicata* effect on the class members. (Rules of Court, rule 3.766(e).)

The Proposed Settlement

Here, this instant case (CIVSB2127440) was filed by Plaintiff Tembrina originally as a wage-and-hour class action on September 14, 2021. On July 8, 2021, Tembrina submitted a written notice to the Labor and Workforce Development Agency (LWDA) to assert wage-and-hour violations in furtherance of a potential representative Private Attorneys General Act (PAGA) cause of action. On January 24, 2023, Plaintiff Rosales filed a similar case (CIVSB2302986) against Defendant, asserting a wage-and-hour class action. Plaintiff Rosales submitted her a LWDA notice letter on May 2, 2022.

On April 20, 2026, Plaintiff Tembrina filed a First Amended Complaint (FAC) in her case in order to fold Plaintiff Rosales into the matter and allege class violations relating to (1) overtime wages; (2) meal periods; (3) rest breaks; (4) minimum wages; (5) final pay; (6) wage timeliness; (7) wage statement accuracy; (8) payroll records; and (9) reimbursements; as well as causes for (10) violation of the unfair competition law (UCL) and (11) civil penalties pursuant to PAGA. Notably the UCL and PAGA claims are underpinned by the alleged wage-and-hour violations.

During the litigation, Plaintiffs sought and received extensive discovery. (Matasovian Decl., ¶13; Settlement, ¶2.6.) They also received substantial payroll and time records, as well as handbook and policy documents. (*Ibid.*) Thereafter, on January 6, 2023, the parties engaged in a full-day, arms-length mediation with Hon. Lesley Green (Ret.), an experienced neutral. (Settlement, ¶2.5.) The parties later held a second session mediation on April 29, 2024, with Hon. Amy D. Hogue (Ret.). (*Ibid.*) After a couple mediator's proposals, the parties reached a settlement in the abstract. The long form settlement agreement was executed in March of 2026. (Khalili Decl., Exh. 2 [Settlement].) Notice of the settlement was given to the LWDA on March 24, 2026. (Khalili Decl., ¶¶16, 44 & Exh. 3.)

There are an estimated 287 class members and 268 PAGA aggrieved employees. (Settlement, ¶4.1.) For purposes of settlement, the class period will reach from January 24, 2019, through July 22, 2024. The PAGA period is from January 12, 2020, through July 22, 2024.

The settlement is proposed on the following terms: Defendants will pay a gross, non-reversionary settlement amount of \$1,400,000.00, from which will be deducted (1) up to \$490,000.00 for Class Counsel's attorneys' fees (35%¹ of gross); (2) costs not to exceed \$23,000.00;² (3) Plaintiffs' enhancement fees of no more than \$30,000.00 total (or \$15,000 each); (4) claims administration fees not to exceed \$10,000.00; and (5) PAGA penalties of \$115,000.00 (of which \$86,750, or 75%, will go to the LWDA and \$28,750, or 25%, will go to the aggrieved employees).

The parties estimate this will leave a wage-and-hour only net settlement amount of a non-reversionary \$732,000.00. This amount would be split by the class of approximately 287 current and former

¹ The Court is usually not inclined to grant 35% in attorneys' fees unless there is some sort of unusual complexity or risk that would warrant such an upward deviation. On motion for final approval, Counsel will provide further analysis of that complexity or risk that counsel believes warrants this upward departure.

² Prior to any final approval, Counsel will provide a break-down of costs at the motion for final approval. Notably, any attorney bills submitted in the guise of services of an expert will require explanation and clarification as to why such bills are not properly considered attorneys' fees. Expert fees will identify the expert utilized. Further, this cap for costs appears much higher than usual. Counsel will be sure to provide a complete breakdown of costs with its motion for final approval.

employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be \$2,550.52. Ninety percent (90%) of paid funds will be representative of penalties and interest, and the remaining ten percent (10%) are representative of wages. (Settlement, ¶3.2.4.1.)

Presuming 268 PAGA aggrieved employees, the average PAGA payout would be \$107.28.

The amount of the settlement is appropriate given the strength of the case, especially in light of Counsel's estimated potential liability exposure. (Khalili Decl., ¶¶18-19.) However, the lower actual settlement appears fair and reasonable in light of certification issues and when calculated to include analysis of various potential defenses as well as the potential appeal of any judgment should Plaintiffs be successful in this venue.

Given the presumption of fairness, the Court would find the figure sufficient to satisfy the *Kullar* requirement. Further, adequate discovery and investigation has occurred. There is no evidence of fraud or collusion. Class Counsel are well qualified to represent the class. The settlement was reached through an arms-length negotiation with the assistance of an experienced and well-respected mediator. The deductions from the gross settlement fund (attorneys' fees,³ costs,⁴ administration fee, incentive award, PAGA penalties, and taxes) appear to be reasonable and appropriate and are, therefore, *preliminarily* approved in the "not to exceed" amounts in the motion. The proposed notice is, also, adequate.

Counsel and the representative are appointed conditionally to represent the class. The motion is *granted*. The court will schedule a hearing to consider final approval at the closest available date to the date recommended by counsel.

The Court preliminarily approves the settlement and (1) Matern Law Group, PC, and Lawyers for Justice, PC, as Settlement Class Counsel; (2) appoints Yolanda Tembrina and Mac Rosales as Class Representatives; (3) approves Apex Group, Inc. as Settlement Administrator; (4) preliminarily finds the settlement fair, reasonable, and adequate; and (5) approves the form and content of the proposed Class Notice and directs the mailing of the same.

At final approval, counsel must advise the court of any pending cases that will be affected by approval of the settlement. Again, prior to final approval, **Counsel must provide the exact number of class members and workweeks for the class settlement and the exact number of PAGA aggrieved employees and pay periods for the PAGA settlement.**

³ Counsel must provide a full lodestar analysis in the motion for final approval.

⁴ Costs must be documented. The court does not award costs for LEXIS or Westlaw usage (which are considered items of overhead), faxes (also overhead), or photocopying in excess of \$0.06 per page.